

26STCV14749 26STCV14749

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV14749 Hearing Date: September 11, 2026 Dept: 833

Gerardo Enrique Gonzalez Quintero. Case No. 26STCV14749

Hearing:

September 4, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

Axel

Henry Vaughan Shalson Judge: Joseph Lipner

[Tentative] Order Granting

Application for Writ of Possession

INTRODUCTION

Plaintiff Gerardo Enrique Gonzalez Quintero

("Plaintiff") moves for a writ of possession against Defendant Axel Henry

Vaughan Shalson ("Defendant") over the following property: A dog named Emma.

The Court GRANTS the application for writ of

possession. The Court also issues a turnover order, and a preliminary

injunction pending the execution of the writ of possession that prevents

Defendant from transferring or harming the dog. The Court does not order an

undertaking by Plaintiff. The Court sets the amount of an undertaking by Defendant at \$5,000, which Defendant has already posted.

Plaintiff shall file a proposed order on the proper judicial council forms that reflect this order.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010, subd. (a).)

Pursuant to Code of Civil Procedure section 512.010, subd. (b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff;

or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff's claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

“If the court finds that the defendant has no interest in the property, the court shall waive the requirement of plaintiff's undertaking and shall include in the order for issuance of the writ the amount of the defendant's undertaking sufficient to satisfy the requirements of subdivision (b) of Section 515.020.” (Code Civ. Pro. § 515.010, subd. (b).)

However, the “defendant may prevent the plaintiff from taking possession of property pursuant to a writ of possession or regain possession of property so taken by filing with the court in which the action was brought an undertaking . . . in the amount determined by the court pursuant to subdivision (b) of Section 515.010.” (Code Civ. Pro. § 515.020, subd. (b).)

DISCUSSION

A.

Evidentiary Objections

The

Court sustains evidentiary objections to Paragraphs 17 and 18 of the Shalson Declaration, on the grounds that comments about what veterinarians do lack foundation and are speculative. Otherwise, the Court overrules the evidentiary objections.

B.

Notice

According

to notice and acknowledgment of receipt filed July 17, 2026, Defendant has received notice of this request for writ of possession. Defendant was also at the prior hearing and filed a substantive opposition.

C.

Probable Validity of Plaintiff's Claim

Plaintiff seeks writs of possession based on its cause of action for (1) breach of oral, written, and implied contract; (2) conversion; and (3) claim and delivery.

Plaintiff and Defendant began a romantic relationship around 2016. (Cristina Gonzalez Quintero Decl., ¶ 4.) In March 2018, Defendant gifted a Pembroke Welsh Corgi named Emma to Plaintiff. (Gerardo Enrique Gonzalez Quintero Decl., ¶ 4.) Plaintiff has treated Emma as his dog and assumed primary responsibility for her care, including but not limited to, feeding, training, daily care, and the majority of her veterinary treatment. (Id., ¶ 6.)

Emma's microchip is solely registered with Plaintiff and Emma's veterinary records list Plaintiff as the owner. (Id., ¶¶ 7-8.)

After the relationship between Plaintiff and Defendant ended, Plaintiff allowed Defendant visitation with Emma under which Defendant recognized and acknowledged Plaintiff's ownership of Emma. (Id., ¶ 10.) The visitation was on a rotating basis every two to three months. (Id., ¶ 11.)

The agreement was followed until January 14, 2026, at which time Defendant informed Plaintiff he would not return Emma to Plaintiff's custody. (Id., ¶ 12.)

Plaintiff has concerns about Emma's health and safety in Defendant's care because he asserts that Defendant is addicted to meth, Defendant has thrown away AirTags which were attached to both Emma and another dog, and Defendant has admitted to physically striking another dog. (Id., ¶ 20.) Defendant has blocked Plaintiff on all communication channels, preventing them from discussing Emma's situation. (Id., ¶ 22.)

Defendant filed an opposing declaration. Defendant states that he purchased Emma from a breeder in March 2018. (Shalson Decl., ¶ 8.) At this time, Plaintiff and Defendant were broken up. (Id., ¶ 9.) When Plaintiff met Emma, he was demonstrably excited. (Id., ¶ 10.) Defendant told Plaintiff, "If we get back together again, of course you and I and Billy and Emma will be a family, but I want to be extremely clear that if anything ever happens to our relationship or we are no longer together, I am the legal sole owner of Emma, and I am legally and financially responsible for Emma." (Id., ¶ 10.) Plaintiff allegedly nodded his head and responded, "Yes, yes, yes." (Id., ¶ 10.) Defendant explains that he alone named Plaintiff. (Id., ¶ 11.) Defendant also states that he never purchased Emma as a gift for Plaintiff and did not gift Emma to Plaintiff. (Id., ¶ 12) Defendant also states that he has always covered major veterinary bills and the expenses for boarding. (Shalson Decl., ¶ 13.) Defendant states that Plaintiff does not have the financial means to take care of Emma if she has a medical problem. (Shalson Decl., ¶ 15.)

Defendant notes in a portion of the declaration to which the Court sustained an objection that Plaintiff's name showing up on vet records does not constitute ownership because "[t]here is no legal requirement at a veterinarian to confirm ownership of the dog. They simply take the person's word for it." (Shalson Decl., ¶ 17.) Defendant also states that Plaintiff had a microchip placed on Emma against his will and without his permission in 2025. (Shalson Decl., ¶ 18.) Defendant explains that Plaintiff had a lot of free time on his hands while Defendant worked; this allowed Plaintiff to take care of Emma. (Shalson Decl., ¶ 19.)

After Plaintiff and Defendant broke up a second time, Defendant agreed to let Plaintiff continue to see Emma. (Shalson Decl., ¶ 24.) Defendant admits that he adopted a calendar that let Plaintiff see Emma 50% of the time. (Shalson Decl., ¶ 24.) Defendant contests Plaintiff's allegation that he stopped Plaintiff from visiting Emma and merely wanted to revisit the logistics of how the visits would occur. (Shalson Decl., ¶ 25.) According to Defendant, Plaintiff got angry when Defendant did not provide a legal document outlining the new custody arrangement. (Shalson Decl., ¶ 27.)

Based on the current record, the Court concludes that that Plaintiff is entitled to the "possession of the property claimed." (Code Civ. Proc., § 512.010, subd. (a)(1).) Plaintiff has provided sworn testimony regarding the

gifting of Emma from Defendant to Plaintiff. (Gerardo Enrique Gonzalez Quintero Decl., ¶ 4.) Plaintiff has also provided sworn declarations from others. For example, a colleague, David Reza, confirms that “[f]rom everything I have witnessed, Emma has always been [Plaintiff’s] dog. (Reza Decl., ¶ 7.) Plaintiff’s sister and mother confirms Defendant gifted Emma to Quintero. (Cristina Gonzales-Quintero Decl., ¶ 5; Annie Quintero Decl., ¶¶ 6-7.) Defendant’s “best man” states that Defendant said that Emma was a gift to Plaintiff. (Ochoa Decl., ¶ 8.) Plaintiff has also provided substantial recent documentation to indicate ownership, such as veterinary records, microchip registration, and rabies certification. The only official document Defendant has presented is years old. (Shalson Decl., Exh. A.)

The Court does not find

Defendant’s argument that veterinarians would simply put Plaintiff’s name as the owner if he came to the vet as persuasive. Defendant offers no foundation for why he is a credible source what the normal practice of veterinarians are when establishing ownership of pets. In the absence of any such foundation, the Court treats Defendant’s comments in Paragraphs 17 and 18 of his declaration as speculative.

Accordingly, based

on this record, the Court concludes that Plaintiff will likely prevail on the underlying claim.

D.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(2), the application must include “a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.”

Plaintiff has made this showing.

E.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(3), the application must include a particular description of the property and a statement of its value. Plaintiff

has provided a particular description of the property, by dog breed and name of dog. Plaintiff has also provided a market value of the dog.

Plaintiff therefore satisfies
section 512.010, subd. (b)(3).

F.

Statutory Statement

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(5), Plaintiff must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. The application includes this statement. (Application, ¶ 8a.)

G.

Location of the Property

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(4), Plaintiff must identify the probable location of the Vehicle and establish probable cause to that

effect. Plaintiff seeks a writ of

possession directing the levying officer to take Emma from 7271 Timber Wolf Drive Tahoma California 96142. (Gerardo Enrique Goznalez Quintero Decl., ¶ 26.)

Plaintiff explains that Defendant owns this property and exchanges of Emma have occurred at this property in the past. (Ibid.)

Thus, Plaintiff

has complied with Code of Civil Procedure section 512.010, subd. (b)(4).

H.

Undertaking

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property."

Section

515.010, subd. (a) states that the value of the defendant's interest "is determined by the market value of the property less the amount due and owing on any

conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property."

However, Section 515.010, subd. (b)

says that "[i]f the Court finds that the Defendant has no interest in the property, the court shall waive the requirement of the Plaintiff's undertaking.

Instead,

Section 515.010, subd. (b) requires Defendant to post an undertaking.

The Court finds

that Defendant has no interest in Emma, and bases this finding on the fact that Plaintiff is the owner listed on the microchip and the veterinary records. Accordingly, no undertaking from Plaintiff is required.

The Court

determines the amount of the undertaking for Defendant to be \$5,000. Plaintiff puts the alleged

market value of Emma at \$2000, double of which is \$4,000. (Gerardo Enrique Goznalez Quintero Decl., ¶ 27.) A dog like Emma has intangible value as well,

and Defendant himself appears to have recognized this by posting a bond of \$5,000.

Plaintiff argues on reply that because Emma is a live animal with a limited life span, an undertaking is not sufficient to protect Plaintiff's interests. However, Plaintiff cites no

law that provides an exception to the Defendant's undertaking in a writ of possession. The statutory language appears to give Defendant the option of posting a bond, and seems to be mandatory: "defendant may prevent the plaintiff from taking possession of property pursuant to a writ of possession or regain possession of property so taken by filing with the court in which the action was brought an undertaking . . . in the amount determined by the court pursuant to subdivision (b) of Section 515.010." (Code Civ. Pro. § 515.020, subd. (b).)

I.

Turnover Order

Section 512.070

states: "If a writ of possession is issued, the court may also

issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court.”

(emphasis added.) “Thus a ‘turnover’ order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession.” (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

The Court also issues a turnover order. The Court notes that the parties have not briefed the question of how a turnover order relates to Defendant filing an undertaking.

J.

Oral Evidence

“A party seeking permission to introduce oral evidence, except for oral evidence in rebuttal to oral evidence presented by the other party, must file, no later than three court days before the hearing, a written statement stating the nature and extent of the evidence proposed to be introduced and a reasonable time estimate for the hearing.” (Cal. Rules of Court, Rule 3.1306, subd. (b).)

Plaintiff has not complied with this rule and has not requested oral evidence.

K.

Temporary Restraining Order/Preliminary Injunction

A temporary restraining order may issue in property possession disputes when there is an immediate danger that the property may become unavailable for levy due to being transferred, concealed, or removed, or when property may become substantially impaired in value. (Code Civ. Pro. § 513.010.) A plaintiff must also establish the probable validity of their claim and provide an undertaking. (Ibid.) At the hearing on the writ of possession, “the court may issue a preliminary injunction to remain in effect until the property claimed is seized pursuant to the writ of possession.” (Code Civ. Pro. § 513.010.)

The Court waives the undertaking, as Defendant

has no legal interest in Emma. Plaintiff has already established the probable validity of the claim and Plaintiff has presented evidence about his concern relating to Defendant's treatment of dogs.

Therefore, the Court will grant a preliminary injunction that shall remain in effect until the property claimed is seized pursuant to a writ of possession. The preliminary injunction prohibits Defendant from doing the following:

(1)
transferring any interest in EMMA by sale,
pledge, or grant or security interest or otherwise disposing of or encumbering
her;

(2)
concealing or otherwise removing EMMA in such a
manner as to make her less available to seizure by the levying officer; and

(3)
impairing the value of the property either by
acts of destruction or by failure to care for the property in a reasonable
manner.

CONCLUSION

The Court GRANTS the temporary restraining order
and the writ of possession.

IT IS SO ORDERED.

Dated: September 11,
2026

Joseph
Lipner

Superior
Court Judge